

Bureau of Indian Standards (Recruitment to Laboratory Technical Posts) Regulations, 2019

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Bureau of Indian Standards (Recruitment to Laboratory Technical Posts) Regulations, 2019

UNION OF INDIA

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Bureau of Indian Standards (Recruitment to Laboratory Technical Posts) Regulations, 2019

Rule

BUREAU-OF-INDIAN-STANDARDS-RECRUITMENT-TO-LABORATORY-TECHNICAL-POSTS-REGULATIONS-2019
of 2019

Published on 4 October 2019

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Bureau of Indian Standards (Recruitment to Laboratory Technical Posts) Regulations, 2019

Published vide Notification No. F. No. BS/11/09/2019, dated 4.10.2019

Last Updated 7th October, 2019

F. No. BS/11/09/2019. - In exercise of the powers conferred by section 8 read with section 39 of the Bureau of Indian Standards Act, 2016 (

11 of 2016

) and in supersession of the Bureau of Indian Standards (Recruitment to Laboratory Technical Posts) Regulations, 2007

and the Bureau of Indian Standards (Recruitment to Administration, Finance and Other Posts) Regulations, 2007, in so far as they relate to the posts of Senior Master Technician, Master Technician, Senior Technician and Technician, except as respects things done or omitted to be done before such supersession, the Bureau of Indian Standards, with the previous approval of the Central Government, hereby makes the following regulations, namely: -

1.

(1)

These regulations may be called the Bureau of Indian Standards (Recruitment to Laboratory Technical Posts) Regulations, 2019.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these regulations, unless the context otherwise requires,-

(a)

"Act" means the Bureau of Indian Standards Act, 2016 (

11 of 2016

);

(b)

"Appointing Authority", in relation to Group 'A' employees means, the Director General and in relation to Group 'B' and Group 'C' employees means the Deputy Director General (Administration);

(c)

"employee" means the employee appointed on regular basis to the permanent post in the Bureau of Indian Standards and includes the employee of the erstwhile Indian Standards Institution;

(d)

"Laboratory Technical Posts" means the posts specified in column (2) of the First Schedule;

(e)

"Officiating Appointment" means appointing an officer already holding a post in a substantive or officiating capacity to officiate, as a temporary measure, in one or more of other independent posts at a time;

(f)

"rules" means the Bureau of Indian Standards Rules, 2018;

(g)

"Schedule" means a Schedule appended to these regulations;

(h)

"Scheduled Castes" and "Scheduled Tribes" shall have the same meanings as respectively assigned to them in clauses (24) and (25) of article 366 of the Constitution;

(i)

"Selection Committee" means the committee constituted under regulation 9;

(j)

words and expressions used in here and not defined, but defined in the Act or the rules, shall have the same meaning as respectively assigned to them in the Act or the rules, as the case may be.

3.

Initial constitution and application.

(1)

These regulations shall apply to the Laboratory Technical Posts mentioned in column (2) of the First Schedule:

Provided that the services rendered by the incumbents to these posts in the erstwhile Indian Standards Institution on a regular basis shall be counted for the purposes of these regulations.

(2)

The personnel holding the posts of Senior Master Technician, Master Technician, Senior Technician and Technician immediately before the commencement of these regulations on regular basis shall be deemed to have been appointed in accordance with the provisions of these regulations and the regular continuous service of such persons in their respective posts immediately before the commencement of these regulations shall count for the purposes of probation,

confirmation, seniority, qualifying service for promotion and pension in the service.

4.

Method of Recruitment.

- The method of recruitment to the said posts, level in pay matrix, age-limit, qualifications and other matters connected therewith shall be as specified in column (4) to (10) of the First Schedule.

5.

Direct Recruitment.

(1)

Where any posts specified in column (2) of the First schedule is required to be filled by direct recruitment, the following procedure shall be followed, namely:-

(i)

any vacancy arising in the List of Disciplines in respect of the post of Technical Assistant (Laboratory) or List of Trades in respect of the post of Senior Technician or Technician, as specified in the Second Schedule shall be advertised in the Employment News, Rozgar Samachar and at least two leading newspapers and also on the websites of the Bureau and the Department of the Central Government having administrative control of the Bureau giving full information regarding number of such posts, reservation for the Scheduled Castes, the Scheduled Tribes, ex-Servicemen and other special categories of persons as specified by the Central Government from time to time, age-limit, the qualifications and experience, as specified in the First Schedule and such other matter as may be necessary;

(ii)

candidates possessing the qualifications, experience and age-limit as specified in the First Schedule shall be eligible for the post:

Provided that the upper age-limit up to the age of fifty years may be relaxed in the case of serving officers and employees of the Bureau;

(iii)

a written or on-line examination shall be conducted by the Bureau, departmentally or through a professional institution or agency, as may be decided by the Director General;

(iv)

the number of candidates to be called for skill test or practical test or trade test, which shall be qualifying in nature, shall be not more than four times the number of vacancies advertised in the respective disciplines or trades in the order of merit from among those who have secured at least fifty per cent marks in the written or online test in the concerned discipline or trade and also secured at least fifty per cent marks in the aggregate;

(v)

the candidates shall be selected discipline-wise or, as the case may be, trade-wise on the basis of merit as determined by the total marks secured in the written or on-line examination subject to their qualifying the skill test;

(vi)

there shall be no interview for recruitment in Group 'B' and Group 'C' posts;

(vii)

where posts reserved for the Scheduled Castes, the Scheduled Tribes, ex-Servicemen or other special categories of persons cannot filled on the basis of the criteria laid down in clauses (iv) and (v), the candidates belonging to such category may be selected by giving relaxation as per the Government guidelines, to make-up the deficiency in the reserved quota, subject to suitability of such candidates for selection to the post concerned;

(viii)

a waiting list in addition to the select list of successful candidates shall be drawn up for filling up the vacancies which shall remain valid for a period of one year from the date when such list is drawn:

Provided that the number of candidates in waiting list shall not exceed fifty per cent of the number of posts advertised;

(2)

The candidates appointed by direct recruitment under sub-regulation (1) shall be on probation for a period of two years in accordance with the provisions of the Bureau of Indian Standards (Terms and Conditions of Service of Employees) Regulations, 2007, during which period, they may be required to undergo such training or may be given such responsibilities as may be deemed necessary by the Appointing Authority or may be required to pass departmental examination or examinations for successful completion of probation:

Provided that the module of the training, responsibilities to be given and the departmental examination to be passed for successful completion of probation shall be such as may be recommended by the Appointing Authority and approved by the Director General from time to time:

Provided further that where the Director General is the Appointing Authority, approval of the Executive Committee shall be obtained.

6.

Deputation.

(1)

Where any posts specified in column (2) of the First Schedule is required to be filled up by deputation, such posts shall be advertised in at least two leading newspapers and also on the websites of the Bureau and the Department of the Central Government having administrative control of the Bureau giving full information regarding number of posts, prescribed qualifications, age-limit, special expertise, if any, required and the experience as specified in the First Schedule and such other matter as may be necessary:

Provided that the maximum age limit for appointment on deputation basis shall not exceed fifty-six years on the closing date of the receipt of the application:

Provided further that the period of such deputation shall not ordinarily exceed three years and the maximum period of deputation shall be five years.

(2)

The candidates who fulfill the prescribed requirements and are shortlisted by the Screening Committee constituted under regulation 7 shall be called for selection.

7.

Screening Committee for selection by deputation.

(1)

Applications received in response to the advertisement for posts to be filled by deputation shall be screened by a Screening Committee consisting of not less than three officers of the Bureau not below the rank of Scientist 'C' or equivalent, to be nominated by the Director General and the senior-most amongst them shall be the Chairperson of the committee.

(2)

The candidates as shortlisted by the Screening Committee shall be considered by the Selection Committee for selection.

8.

Promotion.

(1)

Where any posts specified in column (2) of the First Schedule is required to be filled up by promotion, such promotion shall be made on the recommendation of the Selection Committee constituted by the Director General, by selection, from amongst the employees in the lower grade, on the basis of merit or with due regard to seniority.

(2)

The regular employees shall be entitled to the grant of financial up-gradations under the Modified Assured Career Progression Scheme as admissible to the employees of the Central Government and as amended from time to time.

(3)

Non-functional Grade I and Grade II shall be granted to laboratory officers in the manner specified in the First Schedule.

9.

Selection Committee.

(1)

The Selection Committee shall be constituted by the Director General as under:

(i)

the Selection Committee for Group 'A' post shall consist of the following members, namely:-

(a)

an officer not below the rank of Scientist 'F' or Deputy Director General;

(b)

a nominee of the Ministry or Department of the Central Government having administrative control of the Bureau;

(c)

Director or Head or Officer in-charge of the department dealing with the personnel functions in the Bureau;

(d)

two officers not below the rank of Scientist 'E' or Director who shall be representative of the Scheduled Caste or the Scheduled Tribes or Other Backward Classes or Minority or Women, of whom at least one shall be from the Scheduled Caste or the Scheduled Tribe; and

(e)

one outside expert, associated with the activity relating to the Bureau, to be nominated by the Director General:

Provided that the member nominated under clause (b) or the outside expert nominated under clause (e) shall be the Chairperson of the Selection Committee;

(ii)

the Selection Committee for Group 'B' and Group 'C' post shall consist of the following members, namely :-

(a)

an officer not below the rank of Scientist F or Deputy Director General, who shall be the Chairperson, to be nominated by the Director General;

(b)

Director or Head or Officer in-charge of the department dealing with the personnel functions in the Bureau;

(c)

two officers not below the rank of Scientist C or Deputy Director who shall be representative of the Scheduled Caste or the Scheduled Tribes or Other Backward Classes or Minority or Women, of whom at least one shall be from the Scheduled Caste or the Scheduled Tribe; and

(d)

the Deputy Director or Assistant Director dealing with the personnel functions in the Bureau.

(2)

The recommendations made by the Selection Committee referred to in sub-regulation (1) shall be submitted to the Director General for approval.

10.

Appointing Authority.

(1)

Appointments shall be made by the Appointing Authority to Group 'A' Posts on the recommendations of the Selection Committee for Group 'A' post and to Group 'B' and Group 'C' Posts on the recommendations of the Selection Committee for Groups 'B' and Group 'C' post:

Provided that the officiating appointments may be made by the Appointing Authority without recommendations of the appropriate Selection Committee subject to conditions specified for such appointments in the Schedule appended to the Bureau of Indian Standards (Powers and Duties of Director General) Regulations, 2018:

Provided further that the respective Selection Committees shall also function as Screening Committee for the purpose of considering and recommending the cases for grant of financial up-gradation under the Modified Assured Career Progression Scheme specified in sub-regulation (2) of regulation 8 and the Non-Functional Grade I and Grade II, as specified in sub-regulation (3) thereof.

11.

Categories of posts and their authorised strength.

(1)

The categories of posts and their authorised strength shall be such as may, from time to time, be determined by the Executive Committee, with the approval of the Central Government.

(2)

The categories of posts and their authorised strength as on the date of the notification of these regulations shall be as specified in the First Schedule and the Disciplines or trades of the posts shall be as given in the Second Schedule.

12.

Power to relax.

- Where the Bureau is of the opinion that it is necessary or expedient so to do, it may, for reasons to be recorded in writing, relax any of the provisions of these regulations in respect of any class or category of persons:

Provided that the approval of the Central Government shall be taken for such relaxation before it is implemented.

13.

Savings.

- Nothing in these regulations shall affect reservations, relaxation of age-limit and other concessions required to be provided for the Scheduled Castes, the Scheduled Tribes, ex-Servicemen, and other special categories of persons as specified by the Central Government from time to time.

14.

Interpretation.

- If any question arises relating to the interpretation of these regulations, it shall be decided by the Bureau with the approval of the Central Government.

First Schedule

(2, 3, 4, 5, 6, 8 and 11)

Laboratory Technical Posts

Sl. No.

Name of the Post.

Number of Posts.

Level in pay matrix.

Whether selection post or non-selection post.

Maximum age limit for direct recruits.

Educational and other qualifications required
for direct recruits.

Method of recruitment.

Whether age and educational qualifications
prescribed for direct recruits will apply in the case of
promotees.

In case of recruitment by promotion or
deputation/ absorption, the grades from which promotion or
deputation/absorption is to be made.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

1.

Laboratory Officer.

60 (2019).

Level - 7 (Rs. 44900- 142400).

Selection.

Not applicable.

(i) Bachelor's Degree in Science with Chemistry
or Microbiology or Physics or Bio-Technology or Food Technology
or Bio-Chemistry or Electronics as one of the main subject with
minimum sixty per cent marks (fifty per cent for the Scheduled
Castes and the Scheduled Tribes); or(ii) three years Diploma
in Mechanical or Electrical or Civil or Chemical or Electronics
or Food Technology or Metallurgy with minimum sixty per cent
marks (fifty per cent marks for the Scheduled Castes and the

Scheduled Tribes); and(iii) five years' regular service in the respective trade.

By promotion failing which by deputation.

Not applicable.

Promotion: Technical Assistant (Laboratory) with five years' regular service in the grade.Deputation: (a) (i) officers holding analogous post on a regular basis in the parent cadre or department; or.(ii) Officers with five years' regular service in the Level-6 (Rs. 35400-112400) in the pay matrix; and(b) possessing qualifications prescribed for direct recruitment under column (7).

NOTE:The number of posts to be filled up in any of the disciplines, as specified in the Second Schedule, shall be determined by the Executive Committee at the time of recruitment as per the requirement of the organisation.

Non-functional

Grades:

- Non-functional

Grade-I in Level - 8 in the pay matrix, as per recommendation of the Seventh Central Pay Commission, shall be granted to the Laboratory Officer with five years regular service in the Grade:

Provided that the

Laboratory Officers, who have already been granted Financial Up-gradation under Modified Assured Career Progression Scheme in Level-8, shall also be eligible for grant of Non-Functional Grade-II in Level-9 on completion of five years' service in Level-8.

- Non-functional Grade-II in Level-9 in the pay matrix, as per recommendation of the Seventh Central Pay Commission, shall be granted to the Laboratory Officer with five years regular service in the Non-functional Grade-I.

Sl. No.

Name of the Post.

Number of Posts.

Level in pay matrix.

Whether selection post or non-selection post.

Maximum age limit for direct recruits.

Educational and other qualifications required for direct recruits.

Method of recruitment.

Whether age and educational qualifications prescribed for direct recruits will apply in the case of promotees.

In case of recruitment by promotion or deputation, the grades from which promotion or deputation is to be made.

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)

(7)
(8)
(9)
(10)
1.
Technical Assistant (Laboratory).
120 (2019).
Level - 6 (Rs. 35400- 112400).
Not applicable
30 years.
(i) Bachelor's Degree in Science with Chemistry
or Microbiology or Physics or Bio-Technology or Food Technology
or Bio-Chemistry or Electronics as one of the main subject with
minimum sixty per cent marks (fifty per cent for Scheduled
Castes and the Scheduled Tribes); or(ii) three years Diploma
in Mechanical or Electrical or Civil or Chemical or Electronics
or Food Technology or Metallurgy with minimum sixty per cent
marks (fifty per cent marks for the Scheduled Castes and the
Scheduled Tribes); and
(i) 90 per cent. by direct recruitment; and(ii) 10 per cent. by limited department competitive examination.
Not applicable.

Through limited departmental competitive examination:(a) Senior Master Technician; or(b) Master technician with six
years regular service in the grade or Master Technician with six years combined regular service in the post of Master
technician and Senior Technician; or(c) Senior Technician with ten years regular service in the
grade,Essential:Educational Qualification as prescribed under column (7) subject to minimum forty five per cent.
marks(forty per cent. for the Scheduled Castes and the Scheduled Tribes).

NOTE 1:The
number of posts to be filled up in any of the disciplines, as
specified in the Second Schedule, shall be determined by the
Executive Committee at the time of recruitment as per the
requirement of the organisation.

NOTE 2:The
procedure and module (pattern, syllabus, maximum marks, qualifying
marks, etc.) of the limited Departmental Competitive Examination for
promotion to the post of technical Assistant (Laboratory) Shall be
as recommended by the Appointing Authority and approved by the
executive Committee, on the Basis of organisational requirement form
time to time.

Serial Number.

Name of the Post.

Number of Posts.

Level in pay matrix.

Whether selection or non-selection post.

Maximum age limit for direct recruits.

Educational and other qualifications required
for direct recruits.

Method of recruitment.

Whether age and educational qualifications
prescribed for direct recruits will apply in the case of
promotees.

In case of recruitment by promotion or

deputation, the grades from which promotion or deputation is to be made.

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)
- (8)
- (9)
- (10)

3.

Senior Master Technician.

12 (2019).

Level - 6 (Rs. 35400 - 112400)

Non-selection post.

Not applicable.

Not applicable.

By promotion.

Not applicable.

Master Technician with six years' regular service in the Grade.

4.

Master Technician.

16 (2019)

Level - 5 (Rs. 29200 - 92300)

Non-selection post.

Not applicable.

Not applicable.

By promotion.

Not applicable.

Senior Technician with five years' regular service in the grade and who has passed the Trade Test.

5.

Senior Technician.

30 (2019)

Level - 4 (Rs. 25500 - 81100)

Not applicable.

Twenty seven years.

(i) Matric or its equivalent;(ii) Industrial

Training Institute Certificate in any of the following

trades:(a) Electrician;(b) Air-Conditioning; (c)

Refrigeration;(d) Mechanic (Diesel ? Engine);(e)

Fitter;(f) Carpenter;(g) Plumber;(h) Wireman;(i) Turner;(j) Welder (the Welder should be also having passed the Welders' Qualifying Test as per the relevant Indian

Standard or its equivalent); and(iii) two years' practical

experience in the respective trade after having obtained the

Industrial Training Institute Certificate or National

Apprenticeship Certificate in the relevant trade.

By promotion failing which by direct recruitment

Not applicable.

Technician with eight years' regular service in the grade.

Serial Number.

Name of the Post.

Number of Posts.

Level in pay matrix.

Whether selection or non-selection post.

Maximum age limit for direct recruits.

Educational and other qualifications required for direct recruits.

Method of recruitment.

Whether age and educational qualifications prescribed for direct recruits will apply in the case of promotees.

In case of recruitment by promotion or deputation, the grades from which promotion or deputation is to be made.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

6.

Technician.

1 (2019).

Level - 2 (Rs. 19900 - 63200)

Not applicable.

Twenty seven years.

(i) Matric or its equivalent;(ii) Industrial Training Institute Certificate in any of the following trades:(a) Electrician;(b) Air-Conditioning;(c) Refrigeration;(d) Mechanic (Diesel - Engine);(e) Fitter;(f) Carpenter;(g) Plumber;(h) Wireman;(i) Turner;(j) welder (the welder should be also having passed the welders Qualifying Test as per the relevant Indian Standard or its equivalent); or(iii) National Apprenticeship Certificate in the relevant trade.

By direct recruitment.

Not applicable.

Not applicable.

NOTE :The

number of posts to be filled up in any of the trades, as specified in the Second Schedule, shall be determined by the Director General at the time of recruitment as per the requirement of the the organisation.

Second Schedule

(See regulation 5, 11 and First Schedule)

1. List of Disciplines for the purpose of recruitment to the post of Technical Assistant (Laboratory) under these regulations:

I. Degree based disciplines:

- (i)
Chemistry
- (ii)
Physics
- (iii)
Micro-biology
- (iv)
Bio-technology
- (v)
Food technology
- (vi)
Bio-chemistry
- (vii)
Electronics

II. Diploma based disciplines:

- (i)
Mechanical
- (ii)
Chemical
- (iii)
Electrical
- (iv)
Civil
- (v)
Electronics
- (vi)
Food technology
- (vii)
Metallurgy

2. List of Trades for the purpose of recruitment to the post of Senior Technician or Technician under these regulations:

- (i)
Electrician
- (ii)
Air-conditioning
- (iii)
Refrigeration
- (iv)
Mechanic (Diesel Engine)
- (v)
Fitter
- (vi)
Carpenter
- (vii)
Plumber
- (viii)
Wireman
- (ix)
Welder
- (x)
Turner

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